Tyler Allen Lofall - Plaintiff
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**UNITED STATES DISTRICT COURT**

**DISTRICT OF OREGON**

**PORTLAND DIVISION**

| | |
|---|---|
| v.<br>**THE COUNTY OF CLACKAMAS at el,**<br>*West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,*<br>Defendant(s), | **Case No.: 3:24-cv-839**<br><br>**MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT** |

## MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

**COMES NOW** Plaintiff Tyler A. Lofall, Pro Se, respectfully moving the Court for leave to file a Second Amended Complaint and to have the original filing date relate back to May 2024, in order to preserve the original complaint's filing date for statute of limitations purposes. In support of this motion, Plaintiff states as follows:

# I. BASIS FOR REQUEST

## 1. INCLUSION OF ADDITIONAL EVIDENCE AND CORRECTIONS

Plaintiff seeks to include additional critical evidence inadvertently omitted from the First Amended Complaint, including:

a. Evidence of Plaintiff's legal blindness (prescription) impacting his ability to effectively represent himself and review documents.

b. Corrections to factual claims and constitutional provisions to properly reflect recent discovery and address typographical errors.

## 2. CORRECTION OF ERRORS IN CONSTITUTIONAL CLAIMS

Plaintiff also seeks to correct errors in references made to the Eighth Amendment, properly asserting that the claims fall under pre-sentenced detainee rights under the Fourteenth Amendment regarding conditions of confinement.

## 3. RELATION BACK TO ORIGINAL FILING DATE (MAY 2024)

Pursuant to Federal Rule of Civil Procedure 15(c), Plaintiff requests that the Second Amended Complaint relate back to the original filing date of May 2024. Due to procedural hurdles outside of Plaintiff's control—including being

denied access to file due to lack of ID, having documents rejected when submitted on a thumb drive, and administrative delays caused by systemic obstacles—equitable tolling and relation back are appropriate to preserve Plaintiff's claims.

## II. EXHIBITS FOR CONSIDERATION

In conjunction with the Second Amended Complaint, Plaintiff submits the following exhibits:

a. **Exhibit-to-Paragraph Correlation Table** – Document uploaded as "Exhibit.pdf".

b. **Master Exhibit List** – Document titled "MASTER EXHIBIT LIST FED COURT BOOKMARKED2.pdf".

c. **Supporting Exhibits** – As listed and referenced in the Master Exhibit List.

Plaintiff further requests that the original exhibit list and previously served documents be treated as incorporated in the Second Amended Complaint to ensure completeness and proper record continuity.

# III. LEGAL STANDARD

Pursuant to Federal Rule of Civil Procedure 15(a)(2), leave to amend shall be freely given when justice requires. Given the substantial obstacles faced by Plaintiff—including obstruction in filing and refusal by defendants to waive service—equitable considerations support allowing these amendments and preserving the original filing date.

# IV. LACK OF PREJUDICE TO DEFENDANTS

The amendments do not introduce new claims but rather provide necessary clarifications, corrections, and supporting evidence. Defendants will not be prejudiced as they have had notice of the claims since May 2024, and procedural obstacles have been the primary cause of delay.

# V. RELATION BACK AND EQUITABLE TOLLING ARGUMENTS

## 1. DEFENDANTS' KNOWLEDGE AND REFUSAL OF SERVICE

The defendants have been served, had notice, or were intentionally obstructive regarding Plaintiff's attempts at service. The return of documents that were successfully delivered to other defendants indicates a deliberate refusal rather than a failure of service. Plaintiff's efforts demonstrate diligence in trying to

comply with procedural requirements, and equitable tolling should apply under these circumstances.

## 2. Prior Attempts to Dismiss and Motion for Equitable Tolling

Plaintiff has a pending Motion for Equitable Tolling in federal court and requests that the court recognize all efforts made to maintain the case, including attempts to dismiss the state case contingent on acceptance by federal court, as evidence of ongoing diligence. The failure to grant relief based on procedural grounds has compounded the harm and delayed justice, further necessitating equitable tolling.

## 3. Correction to Constitutional Provisions

Plaintiff corrects prior misstatements, explicitly referencing violations under the Fourth, Fifth, Sixth, Seventh, and Fourteenth Amendments, as detailed in the Constitutional Provisions section. Plaintiff also incorporates all provisions into the clauses of action to ensure proper legal coherence.

# VI. CONCLUSION

For the reasons set forth herein, Plaintiff respectfully requests that this Honorable Court:

1. Grant Leave to File a Second Amended Complaint that includes all necessary corrections, exhibits, and factual evidence;
2. Allow the Second Amended Complaint to Relate Back to the Original Filing Date (May 2024), thus preserving the original statute of limitations;
3. Grant Equitable Tolling given the procedural barriers and defendants' conduct in obstructing Plaintiff's access to federal court.

RESPECTFULLY SUBMITTED ON MY OWN BEHALF,
THIS 9th DAY OF OCTOBER 2024,

/s/ Tyler A Lofall

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